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INTRODUCTION

Abstract

This introduction sets the stage for an edited volume arising from the December 2023 conference, "The Religious Origins of White Supremacy: *Johnson v. M'Intosh* and the Doctrine of Christian Discovery," held at Syracuse University. Anchored in the 200th anniversary of *Johnson v. M'Intosh*, the project critically interrogates the enduring influence of the Doctrine of Christian Discovery (DoCD) and its foundational role in shaping United States Indian Law, racism, land dispossession, and Christian imperialism. Through collaboration among scholars, activists, and Indigenous communities, the volume is organized around three core themes: religion, law, and pedagogy. Essays explore the DoCD's theological and legal architecture, its entrenchment of white supremacy, and strategies for dismantling legal and educational systems of domination. With contributions from leading Indigenous and allied thinkers, the collection highlights transnational impacts—from North America to Brazil and India—while foregrounding Indigenous epistemologies, sovereignty, and calls for justice. This volume advances the global movement to repudiate the DoCD and reimagines justice through frameworks grounded in relationality, accountability, and decolonization. The introduction honors the memory of Sally Roesch Wagner and situates the collection within a growing intellectual and activist tradition.

In Memory and Honor of Sally Roesch Wagner (1942-2025)

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INTRODUCTION

In 2022 Professor Philip P. Arnold of Syracuse University Department of Religion received a Henry Luce foundation Grant entitled "200 Years of *Johnson v. M'Intosh* (JvM): Indigenous Responses to the Religious Foundations of Racism." His vision for this grant was a collaborative initiative between scholars, activists, and Indigenous communities. At the core of the project was and is an interrogation and critical examination between the Doctrine of Christian Discovery (DoCD), the Catholic Papal Bulls that undergird the Doctrine, and the Doctrine's pernicious influence on United States Indian Law today.

Using the 200th anniversary of Johnson and now the approaching 250th anniversary of American Democracy both serve occasion for analysis, Arnold sought to put together a conference and various outcome documents and publications which would highlight past, present, and sadly future theological and jurisprudential collusion occurs around three primary foci enslavement, exploitation, and extraction. These three foci were first woven together by Shawnee/Lenape scholar Steven T. Newcomb in his groundbreaking book Pagans in the Promised Land.[1]

This project sought to deliver a range of digital projects all of which are documented and listed at outcome.doctrineofdiscovery.org. We have produced open access publications with Canopy Forum: On the Interactions of Law & Religion, Journal of the Council for Research on Religion (JCREOR), Religions, CrossCurrents, and now Syracuse University Press for this edited volume. All these publications ran alongside our podcast Mapping the Doctrine of Discovery, which is hosted by Arnold and Bigtree and produced by Adam DJ Brett and Jordan Brady Loewen-Colón (podcast.doctrineofdiscovery.org). The goal of these publications and outreach activities was not only to raise awareness about the harmful impacts of the DoCD but also to help expand the growing intellectual bulwark of support for the global movement of Indigenous Peoples seeking to dismantle the Doctrine of Discovery. We give our gratitude to Heather Stauffer Editor-in-Chief of Syracuse University Press for her guidance, and to our team of editorial assistants Colene R. Belmont, Nethanial Belmont and Matthew Jordan Pierce.

A focal point of our work was the December 2023 conference The Religious Origins of White Supremacy:Johnson v. M'Intosh and the Doctrine of Christian Discovery, hosted at Syracuse University. This conference was brought together in Onondaga Nation Territory, which is the heartland of the Haudenosaunee (Iroquois), a wide range of scholars, activists, and Indigenous communities from around the world. Moving beyond the standard fare of academic panels there was also a play In the Court of the Conqueror, Tēnei Te Põ Nau Mai Te Ao: Ancient Māori Puppetry Healing Traumatic Histories, and powerful keynote presentations by leaders like Onondaga Nation Turtle Clan Faithkeeper Oren Lyons.

Outline

This edited volume here contains a selection of some of the incredible presentations that were given at the conference. We have subdivided them into three categories: religion, law, and pedagogy. First, we wish to begin by foregrounding the role and responsibility of religion in creating and perpetuating harm through the Doctrine of Christian Discovery, racism, sexism, religious nationalisms, and other hegemonic forms of domination. After the series of essays on religion we move on to the essays on law which track Christian hegemonic dominion through

[1] Steven T Newcomb, *Pagans In The Promised Land: Decoding The Doctrine Of Christian Discovery* (Fulcrum Publishing, 2008).

law. Then we conclude with an excellent set of chapters underscoring the difficult work of teaching the Doctrine of Discovery, religious origins of racism, and religious nationalisms.

Religion

Sadly, our volume begins with a posthumous essay by our dear friend and colleague Sally Roesch Wagner (1942-2025). She was beloved by all who knew her. Her kindness was surpassed only by her brilliance and her commitment to recovering and telling the stories of those that history tries to forget like that of Matilda Joslyn Gage. Her research on Gage led to her moving across the country and founding the Matilda Joslyn Gage Museum & Center for Social Justice Dialogue, where she served as founder and executive director for decades. The author of numerous books and publications some of her most well-known works are her introduction to the editing of The Women's Suffrage Movement, We Want Equal Rights! The Haudenosaunee (Iroquois) Influence on the Women's Rights Movement, and Sisters in Spirit: Haudenosaunee (Iroquois) Influence on Early American Feminists.[2] Her work on Gage and the relationship between the Haudenosaunee women and Suffragettes was part of what led Philip P. Arnold and Sandra Bigtree (Mohawk Nation) to move back to Haudenosaunee territory in Syracuse, NY back in 1995. This is but one example of the reach and influence of Roesch Wagner's tireless scholarship and advocacy.

When she passed away she was working on two books and preparing to teach in the fall at Syracuse University. She worked closely with Phil and Sandy and the members of the Doctrine of Discovery Project, publishing an essay on the blog in 2023, one which she revised and presented at the conference, and further revised for publication here. We are honored and humbled to start the volume with her contribution. Here she traces the legacy of Christian hegemonic domination of women before, during, and after the Doctrine of Christian Discovery.

Following Roesch Wagner, Sebastian Modrow's chapter traces the development of the Doctrine of Christian Discovery (DoCD) through key 15th-century papal bulls, showing how a medieval crusading worldview and papal authority were repurposed to justify European colonial expansion. He argues that the DoCD rests on a three-part theological-political logic: Catholic faith as necessary for salvation, resistance to that faith as treason, and colonial conquest as a divinely sanctioned means to convert and dominate non-Christian peoples. The essay highlights how this religious doctrine became a legal and geopolitical framework that shaped the modern world.

Sarah Nahar's chapter argues that integrating an analysis of settler colonialism—particularly through the Doctrine of Christian Discovery—into Black feminist theory can strengthen solidarity and shared political frameworks between Black and Indigenous feminists. She critiques the historical and ongoing absence of Indigenous sovereignty from Black feminist organizing and calls for deeper engagement with land, decolonization, and Indigenous thought. By naming settler colonialism as a key system of oppression, Nahar urges a renewed vision of collective freedom rooted in relationality, accountability, and place-based justice.

Expanding on the analysis of settler colonialism, Telma Alencar's chapter exposes how the Doctrine of Discovery shaped Brazil's colonial history and continues to inform present-day systems of white supremacy, environmental exploitation, and educational control. It critiques the myth of Brazil's "accidental discovery," reveals the suppression of colonial documents, and

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[2] Sally Roesch Wagner, *Sisters in Spirit: Haudenosaunee (Iroquois) Influence on Early American Feminists* (2001), /z-wcorg/; Sally Roesch Wagner and Gloria Steinem, *The Women's Suffrage Movement*, Penguin Classics (Penguin Books, 2019), WorldCat; Sally Roesch Wagner, *We Want Equal Rights! : How Suffragists Were Influenced by Haudenosaunee Women* (7th Generation, 2020), WorldCat.

tracks how imperial, religious, and U.S.-driven neocolonial forces sustained inequality and erased Indigenous histories. The essay calls for dismantling this silence to challenge dominant narratives and affirm Indigenous sovereignty and justice.

Maeve Callan's chapter argues that religious white supremacy and the Doctrine of Discovery have deep medieval roots, emerging from English identity formation, crusade defeats, and the racialization of Christian identity. She traces how myths of whiteness and divine chosenness were used to justify colonization, from Ireland to the Americas, and how these beliefs shaped U.S. legal and cultural systems. Callan shows that dismantling these enduring myths is essential to confronting contemporary racial and ecological injustices.

Wendy Felese's chapter examines how the "Chosen People–Promised Land" worldview, rooted in Euro-Christian theology and papal bulls, continues to shape federal Indian law and land disputes in the American West. She argues that this ideological framework invisibilizes Indigenous land claims and reinforces settler ownership through legal and metaphorical systems structured by religiously based notions of rights and dominion. Felese calls for replacing these dominant cognitive models with Indigenous values of relationality, reciprocity, and respect to achieve justice.

Continuing the place-based contextualization of the Doctrine of Christian Discovery, Eglutė Trinkauskaitė and Ellen B. Cutler's essay examines the Baltic Crusades and the violent Christianization of Indigenous Baltic peoples by the Teutonic Order, revealing how conquest masked as conversion facilitated land theft and cultural suppression. Drawing on theories of signification and salvage accumulation, they show how Indigenous religion was distorted, subordinated, and erased in both medieval and modern narratives. The essay also highlights efforts to reclaim Baltic spirituality through practices like sutartinės singing, emphasizing community, reciprocity, and resistance to colonial frameworks.

Moving beyond Chrisitan hegemony, Shrutika Lakshmi's chapter explores Hindu religious domination and racism in India. Focusing on the lived religious world of Dalit women in southern India, particularly Jogatis and Devadasis dedicated to the goddess Yellamma, challenging dominant views that label their practices as superstition or sexual exploitation. Drawing on scholars like Philip Arnold and Lucinda Ramberg, she argues that Dalit women's rituals reflect alternative forms of sacred dwelling and resistance to caste, gender, and religious oppression. The chapter calls for recognizing these practices as expressions of Indigenous values and feminist agency.

Continuing the focus on India and religious nationalism, Pranay Somayajula's essay examines the rise of Hindutva as a form of "political monotheism," using Carl Schmitt's theory of political theology to show how Hindu nationalism constructs a homogenized Hindu identity to justify an exclusionary ethnostate. He argues that Hindutva reduces India's religious and cultural diversity into a singular, racialized vision of Hindu nationhood that erases Muslims and other minorities. The essay calls for rejecting the fusion of Hinduism and nationalism in favor of a pluralistic, inclusive Indian identity.

Concluding the section on religion is an essay by Adam DJ Brett and Betty Hill (neé Lyons) that explores the interstices between the religious and legal roots of the Doctrine of Christian Discovery and its enduring role in white supremacy, Christian nationalism, and Indigenous dispossession. The essay highlights contributions from Haudenosaunee and Māori leaders, legal scholars, and theologians, while emphasizing the need to rescind papal bulls, reform international law, and restore Indigenous sovereignty and sacred relationships with the land. Through reflections, podcast summaries, and calls to action, the authors advocate for justice grounded in Indigenous law, relational accountability, and ecological responsibility.

Law

Our second section is a focused analysis of the Doctrine of Christian Discovery in U.S. and international law. Peter d'Errico's chapter builds on his book Federal Anti-Indian Law (FAIL) and argues that U.S. federal Indian law is rooted in the racist and religiously imperial Doctrine of Christian Discovery, which still undergirds property law and sovereignty claims in the United States. He critiques the foundational Supreme Court decisions known as the Marshall Trilogy for enshrining Christian domination into law and urges legal and political strategies to challenge these doctrines despite their entrenched power. D'Errico warns that dismantling this legal framework would cause a metaphysical crisis for the U.S. legal system but insists that it is necessary for justice and Indigenous sovereignty.[3]

Onondaga Nation General Counsel, Joseph J. Heath's chapter details how the U.S. Supreme Court's decision in City of Sherrill v. Oneida Indian Nation (2005) reaffirmed the Doctrine of Christian Discovery to deny Haudenosaunee land claims, continuing a long legal tradition rooted in the 1823 *Johnson v. M'Intosh* ruling. Heath critiques how courts use invented equitable doctrines like "laches" to dismiss Indigenous land rights, despite clear treaty violations. He calls for U.S. legal practitioners to follow examples like the Yakama Nation's amicus brief and urges coordinated legal and international strategies to repudiate the doctrine and restore Indigenous sovereignty.

Steven Schwartzberg's chapter is a direct appeal to the American public to confront the enduring legacy of the Doctrine of Christian Discovery, which underpins U.S. claims to sovereignty and land ownership. He argues that this doctrine violates the U.S. Constitution, international law, and moral principles, and calls on citizens to demand its repudiation. Schwartzberg emphasizes the power of public opinion and civic responsibility in dismantling this unjust legal foundation and advancing Indigenous rights.

Phillip Rodgers-Falk's (Ngemba and Wiradjuri Nations) essay traces how the Doctrine of Christian Discovery, originally a papal claim to spiritual and temporal supremacy, was secularized into royal and state sovereignty through English common law, embedding racial hierarchy and Indigenous dispossession into legal systems. He argues that modern property and sovereignty laws—especially in settler states like the U.S., Canada, and Australia—still operate through a two-tier system: an unquestionable sovereign authority (Chamber 1) and a limited, racialized set of rights for Indigenous peoples (Chamber 2). The essay calls for dismantling these foundational legal fictions, exposing them as instruments of white supremacy rather than justice or law.

Robert J. Miller's (Eastern Shawnee) chapter explains how the Doctrine of Discovery developed as a framework of international law used by European Christian powers to justify colonizing non-Christian lands and peoples. He identifies ten core elements—such as first discovery, preemption, terra nullius, and Christian superiority—that the U.S. Supreme Court adopted in *Johnson v. M'Intosh* (1823), which remains binding law today. Miller argues that these legal doctrines continue to shape modern property law and federal Indian law, sustaining global systems of Indigenous dispossession and domination.

Steven T. Newcomb's (Shawnee/Lenape) chapter blends personal narrative and scholarly analysis to expose the foundational role of domination in U.S. law, particularly through the Doctrine of Christian Discovery and the 1823 *Johnson v. M'Intosh* decision. He argues that terms

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[3] Peter d'Errico, *Federal Anti-Indian Law the Legal Entrapment of Indigenous Peoples* (Praeger, an Imprint of ABC-CLIO, LLC, 2022), WorldCat.

like "sovereignty," "property," and "civilization" disguise a system of domination imposed on Indigenous peoples through Christian-European frameworks. Using his "domination translator," Newcomb calls for rejecting these legal fictions and reclaiming Indigenous ways of life rooted in relationality, reverence, and freedom from imposed authority.

We conclude this section with an important contribution by JoDe Goudy (Yakama Nation) who goes into great detail on the powerful statement against the Doctrine of Christian Discovery made by the Yakama nation. He calls for the full repudiation of the Doctrine of Christian Discovery and a return to sacred, respectful relations between peoples and the natural world. Drawing from Yakama Nation traditions and the 1855 Treaty, Goudy argues that U.S. law, rooted in domination, must be replaced by legal and spiritual frameworks based on responsibility, relational accountability, and the recognition of Indigenous sovereignty. He urges a spiritual and legal awakening that honors original instructions from the Creator rather than human-made systems of control.

Pedagogy

We conclude with a series of pedagogical interventions to help educators and community organizers respond to and teach the themes of this volume. Michael Chaness challenges deficit models of Indigenous students in higher education, arguing instead for strength-based approaches grounded in Indigenous values, sovereignty, and relational accountability. He critiques institutional practices that pathologize Native students and calls for educators to reimagine "excellence" in culturally sustaining ways.

Roberta Hurtado blends personal narrative with Latina feminist theory to examine how literature classrooms can challenge colonialism and white supremacy by centering marginalized voices and epistemologies. She uses her experiences as a Puerto Rican woman and professor to advocate for pedagogies rooted in Anzaldúa's "conocimiento," critical self-reflection, and cultural activism.

Ritu Radhakrishnan argues that K-12 schools and teacher education reproduce white supremacy through curriculum, certification processes, and institutional norms. She advocates for culturally sustaining pedagogy, truth-telling about history, and equipping future educators to disrupt dominant narratives and systemic racism in education.

Celinet Duran Jimenez calls out white supremacy as the root of structural injustice in education and criminal justice, using her identity as an Afro-Latina scholar to center marginalized voices. She designs open-access, interdisciplinary, and student-centered curricula that expose systemic racism and empower students to act against oppressive systems.

Danielle S. Nagle's chapter critically examines how New York State's Erie Canal heritage initiatives rely on affective politics to promote a sanitized, celebratory narrative of the canal as an "engineering marvel," while concealing its violent history of Indigenous dispossession facilitated by the Doctrine of Christian Discovery. She analyzes how state marketing campaigns engineer emotional responses—like pride and nostalgia—that obscure treaty violations, Haudenosaunee resistance, and the canal's foundational role in settler colonialism. Nagle calls for resisting these narratives through embodied awareness, affective disruption, and the centering of Haudenosaunee sovereignty and land return in heritage discourse.

In dialogue with Nagle is her colleague Renée Barry. Barry's essay deconstructs the dominant narrative of the Erie Canal as a symbol of American progress by exposing its roots in settler colonialism, Christian supremacy, and patriarchal ideology. She critiques the mythologizing of Governor DeWitt Clinton as the Canal's "father," linking him to his own father's genocidal campaign against the Haudenosaunee during the Revolutionary War, which cleared the way

for canal construction. Barry shows how the Doctrine of Discovery—codified in *Johnson v. M'Intosh* (1823)—legitimized land theft under Christian dominion, a logic echoed in the 1825 "Wedding of the Waters," where Native children and animals were paraded as trophies of conquest. She connects this ritual to Christian patriarchy and utopian movements like the Oneida Community, which cloaked racial and gendered domination in ideals of perfection and liberation. Barry warns that these same narratives persist today, as seen in political rhetoric likening the Micron chip plant to a "new Erie Canal," and calls for a collective reckoning with this legacy through honest storytelling and Indigenous-led reconciliation.

Conclusion

The December 2023 conference at Syracuse University, The Religious Origins of White Supremacy: *Johnson v. M'Intosh* and the Doctrine of Christian Discovery, marked a vital gathering of Indigenous leaders, scholars, artists, and legal experts committed to confronting and dismantling the enduring systems of domination rooted in Christian imperialism and settler law. This edited volume, drawn from the voices and presentations shared at that convening, reflects the urgency and breadth of that project—interrogating the theological, legal, and pedagogical dimensions of the Doctrine of Christian Discovery while amplifying Indigenous frameworks of law, land, and relational accountability.

By situating this volume in conversation with foundational works like Newcomb's Pagans in the Promised Land, d'Errico's Federal Anti-Indian Law, and Discovering Indigenous Lands by Miller and colleagues, this collection affirms that these are not isolated critiques but part of an expanding intellectual and activist movement. Together, the voices in this volume call for a radical reimagining of justice—one that honors Indigenous sovereignty, unmasks the legal fictions of domination, and fosters a future rooted in reciprocity, truth, and liberation.